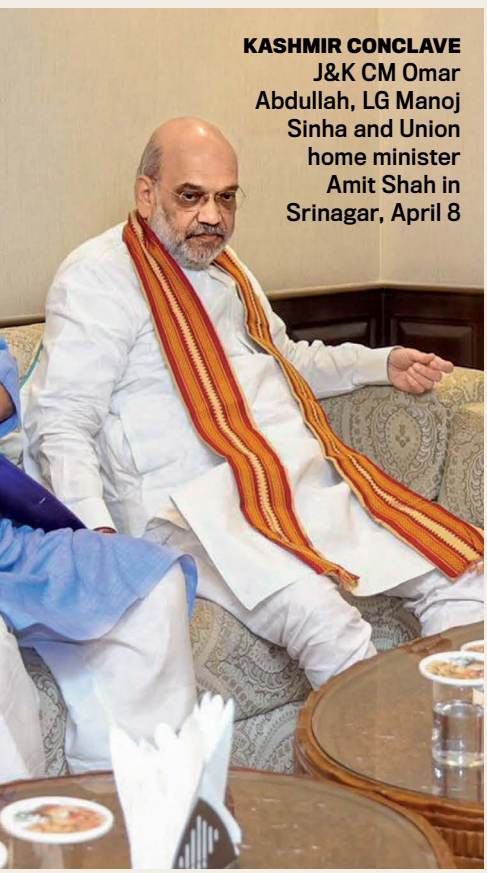
the L-G over several issues, he has avoided escalating matters, even drawing the Opposition charge of being overly amenable to Sinha. The most significant gap in views came when the L-G refused to approve Omar's request for reinstating the December 5 holiday in J&K to celebrate the birth anniversary of National Conference founder Sheikh Abdullah—it had been scrapped along with the July 13 'Martyrs Day' holiday by the L-G in 2020.

With Raj Bhavan now pushing the transfer of administrative officers and pointing to its constitutional powers while doing so, the government's claim of controlling middle-rung JKAS officials has fallen flat, resulting in internal discontent and public embarrassment. "I am well within my domain and I will never do anything by stepping out of it," Sinha has said in response to the controversy.

Omar could only shoot an indignant letter to Union home minister Amit Shah, stating that Sinha's action was in violation of the J&K Reorganisation Act of 2019 and eroded his government's authority as transfer of JKAS officers was its prerogative.

LG VERSUS CM

- **On April 1, Jammu & Kashmir lieutenant governor Manoj Sinha gave the order to transfer 48 middle-rung officials of the Jammu Kashmir Administrative Service**
- **The Omar Abdullah-led J&K government has protested this, terming it as an overreach and violation of the J&K Reorganisation Act, 2019**
- **Sinha has defended his move, saying it is "well within the domain" of the Act**
- **For more clarity on the division of power, the NC government has framed business rules last month; it awaits the Centre's approval**



KASHMIR CONCLAVE J&K CM Omar Abdullah, LG Manoj Sinha and Union home minister Amit Shah in Srinagar, April 8

Being a Union territory, there is a power-sharing system between the L-G and the elected government, and the roots of the current controversy lie in the ambiguity over the administrative domains under the Omar Abdullah-led regime. The 2019 Act, which became applicable after the bifurcation of the erstwhile state into Union territories, gives sweeping powers to the L-G under Section 53, with the business rules of the Union ministry of home affairs clearly putting law and order, all-India services, the anti-corruption bureau, prosecution, prisons and forensic sciences under his control. The rest of the administrative machinery lies with the government, including, claims the ruling NC government, the posting and transfer of JKAS officers.

To get more clarity on areas where the demarcation lines get blurred, thus affecting its powers, the Omar government, too, has framed business rules which it submitted to the L-G a month ago to forward to New Delhi. It awaits the home ministry's approval.

According to NC insiders, legislators at the April 4 meeting discussed the possibility of moving the Supreme Court regarding the restoration of statehood and launching protests demanding the same. It was also widely felt that the Centre's delay in approving Jammu and Kashmir's business rules was a deliberate ploy "to belittle the mandate of the people".

With the L-G demonstrating his 'overarching' powers, the government is realising that the Centre's promises of a speedy return to statehood won't materialise anytime soon. Rather than offer a timeline, Amit Shah has consistently said that statehood will be restored to J&K at an "appropriate time". However, the Omar government will move another resolution on the restoration of statehood—the first one was submitted in October 2024 and received the L-G's approval—in the J&K assembly.

Amidst all this, Shah started his three-day visit to J&K from April 6 at the BJP headquarters in Jammu, and is learnt to have instructed party legislators to up the ante against the government. When he arrived in Srinagar on April 7, he was received at the airport by Omar Abdullah and other officials. The next day, he reviewed the progress of various developmental projects in the UT at a high-level meeting attended by Sinha, Omar, J&K chief secretary Atul Dulloo and the administrative heads of various departments. A meeting taking stock of the security situation in Jammu and Kashmir was also held, where Omar was not present. But, before all that, the chief minister and Shah met for a one-on-one. It afforded Omar a perfect opportunity to air his grievances about Sinha's action and to seek clarity on the demarcation of powers. ■